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ACLU report: Automated license plate readers not uniformly regulated

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cases being used to spy on drivers.

The American Civil Liberties Union worked with the University of Iowa Technology Law Clinic to put together the 63-page report called [“Automated License Plate Readers in Iowa: Review and Recommendations.”](#)

The clinic was able to get information from 43 agencies across Iowa. Five did not respond to the request before the report was released. They include police departments in Des Moines, Clinton, Fayette, Fremont and Mills. The goal was to find out how many ALPRs are deployed, who pays for them, how data is stored and shared, and whether safeguards exist.

The report shows ALPR use has expanded quickly across the state. Of the agencies that provided information, Cedar Rapids has the most cameras at 76, followed by West Des Moines with 64. In eastern Iowa - Dubuque has 22, Iowa City has 17, Marion has 16 and Coralville has 2.

The data shows Iowa counties, cities and towns combined spend about \$213,000 of taxpayer money per month on ALPRs.

Flock is the largest provider of ALPRs in Iowa with 27 of the agencies that responded using this brand. The report says many agencies can access Flock ALPR data, even if they don't have license plate readers in the city they patrol. It said some Flock contracts allow data sharing internationally.

The report found that some law officers are misusing the data from these readers. It says there have been national reports of officers using the data to stalk ex-girlfriends and ex-wives. Texas police also used its access to 83,000 cameras to locate a woman who had an abortion in Illinois where abortion care is legal. The report showed that Flock allowed Immigrations and Customs Enforcement (ICE) to access ALPR data in Illinois to surveil drivers.

The license plate readers, according to the report, would sometimes wrongly accuse drivers of prior crimes, causing dangerous law enforcement stops. A separate study showed one in ten ALPR readings has an error.

after 30 days which is required under Iowa law. Thirteen others say they purge on a retention schedule and if the data is going to be used in a criminal trial, agencies said they may put it on an external drive and store it like evidence.

After seeing all of the information they were able to gather, the ACLU recommends state legislation that makes uniform, minimum policies for agencies. It also recommends law enforcement agencies are only able to save data from these readers for one week. It recommends only sharing data within the state and any agencies out-of-state would have to get a warrant. It also recommended restriction on who can access ALPR data.

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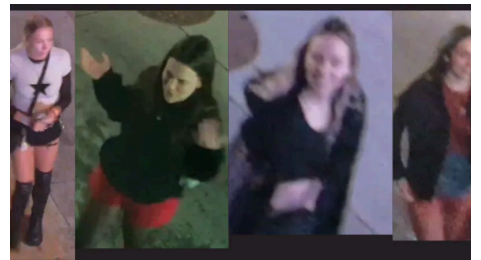
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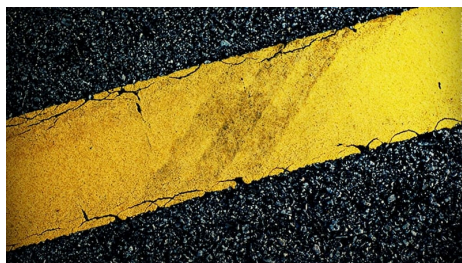
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